

Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010

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State of Andhra Pradesh - Act

Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010

ANDHRA PRADESH

India

Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010

Rule ANDHRA-PRADESH-RIGHT-OF-CHILDREN-TO-FREE-AND-COMPULSORY-EDUCATION-RULES-2010 of 2010

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Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010

Published vide Notification No. G.O.Ms. No. 20, dated 3.3.2011

Last Updated 2nd September, 2019

Notification No. G.O. Ms. No. 20. - In exercise of the powers conferred by sub-section (i) of Section 38 of the Right of Children to Free and Compulsory Education Act',2009 (Act No.35 of 2009), the Governor of Andhra Pradesh hereby makes the following Rules.

1.

Short title.

- These Rules may be called "The Andhra Pradesh Right of Children to Free and Compulsory Education Rules, 2010".

2.
They shall be deemed to have come into force with effect from 1st April'2010.

3.
Definitions .

- (I) In these rules, unless the context otherwise requires,

(1)
'Act' means The Right of Children to Free and Compulsory Education Act 2009.

(2)
'Anganwadi' means an Anganwadi Centre established under the Integrated Child Development Scheme of the Ministry of Women and Child Development of the Government of India

(3)
'Child' means any child male or female in the age group of 6 to 14 years and includes a child who has completed five years of age as on 1st September of the year of admission.

(4)
Child belonging to socially disadvantaged group means and includes a child belonging to the schedule caste, schedule tribe, orphans, Migrant and Street children, Children With Special Needs and HIV affected/infected children.

(5)
A child belonging to Weaker Sections means a child belonging to BC, Minorities and includes OCs whose parents' income does not exceed Rs. 60,000/- Per annum.

(6)
'Collector' means the head of civil and revenue administration in the district

(7)
'Corporator' means elected member of a ward of a Municipal Corporation within the limits of Andhra Pradesh or of the Greater Hyderabad Municipal Corporation.

(8)
'Councilor' means elected member of a ward of an urban local body

(9)
'District' means a revenue district of the State.

(10)
'District Educational Officer (DEO)' means the officer responsible for implementing the programmes for elementary education at district level.

(11)
'ECE' means Early Childhood Care Centers established by Sarva Siksha Abiyan in the premises of primary schools or elsewhere to provide pre-school education to the children in the age group of 3-5 years.

(12)
['Elementary School' means a school that imparts education between first and eighth class either exclusively or in addition to education in other classes, and includes a High School or any other school by whatever name, in so far as the elementary education imparted by it.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(13)
['Free Education' means and includes providing elementary education to all children with no direct or indirect costs like fees/capitation fees, etc.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(14)
'Gram Panchayat' means Gram Panchayat constituted under the Andhra Pradesh Panchayati Raj Act 1994.

(15)
['Local authority' means as defined in the Act, and includes Mandal Praja Parishads and Gram Panchayats, as the case may be in their respective jurisdictions]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(16)
'Mandal Educational Officer (MEO)' means the officer responsible for implementing the programmes for elementary

education at the mandal level.

(17)

'Mandal Resource Person (MRP)' means a resource teacher who coordinates academic activities in a cluster of schools

(18)

'Neighborhood area of a school' means the habitations in a safe walking distance of 1 km for a Primary School, 3 kms for an Upper Primary / High School having classes VI to VIII.

(19)

'Out of School Child' means a child in the age group of 6-14 who has not completed elementary education (who is either never enrolled in the school or dropped out without completing elementary education). A pupil of an elementary school absent for more than one month shall also be considered to be an out of school child.

(20)

['Primary school' means a school or part of a school that imparts education between class I and V and 'Upper primary school' means a school or part of a school that imparts education between class VI and VIII.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(21)

'Sarpanch' means elected head of the Gram Panchayat.

(22)

'School mapping' means planning school location to overcome social barriers and geographical distance and includes assessing availability of schooling facilities for elementary education based on certain fixed norms and standards in terms of location, infrastructure, teachers, by using the method of distance matrix between one habitation and other habitations. It includes The Geographical Information System (GIS) mapping of all the schools in Andhra Pradesh prepared by the Rajiv Vidya Mission (SSA), Andhra Pradesh.

(23)

'State' means the state of Andhra Pradesh

(24)

'State Government' means the Government of Andhra Pradesh.

(25)

'Specified Category' in relation to a school means the residential schools including Kasturba Gandhi Baalika Vidyalayas (KGBVs) and Minority residential schools run by Andhra Pradesh Residential Educational Institutions Society (APREIS), Andhra Pradesh Social Welfare Residential Educational Institutions Society (APSWREIS), Andhra Pradesh Tribal Welfare Residential Educational Institutions Society (APTWREIS), Ashram Schools run by Integrated Tribal Development Agencies (ITDAs), Sports schools run by Sports Authority of Andhra Pradesh (SAAP) in addition to Kendriya Vidyalayas, Navodaya Vidyalayas, Sainik Schools for the purposes of sub-clause (III) of clause (n) of section (2) of the Act.

(26)

'The Academic Authority under the Act' means The State Council for Educational Research and Training, Hyderabad, Andhra Pradesh.

(27)

'The Implementing Authority of the Act' means the State Project Director, Sarva Shiksha Abhiyan, and it includes the Commissioner and Director of School Education, Andhra Pradesh.

(28)

'Walking Distance' means the distance covered by a child from habitation to the school.

(29)

'Ward Member' means elected member of a ward of Gram Panchayat.

All other words and expressions used herein and not defined but defined in the Act shall have the same meaning respectively assigned to them in the Act.

4.

Special Training For Out of School Children.

(1)

The School Management Committee/ Local Authority shall identify children requiring special training and organize such training in the following manner, namely:

(a)

The special training shall be based on specially designed, age appropriate learning material, approved by the academic authority specified in section 29(1) of the Act.

(b)

It shall be provided in classes held on the premises of the school, or in classes organized in safe residential facilities.

(c)

It shall be provided by teachers working in the school, or by teachers specially engaged for the purpose.

(d)

The duration shall be for a minimum period of three months which may be extended, based on periodical assessment of learning progress, for a maximum period not exceeding two years.

(2)

The child shall, upon induction into the age appropriate class after special training, continue to receive special attention by the teacher to enable him/her to successfully integrate with the rest of the class, academically and emotionally.

(3)

The School Management Committees may involve Civil Society Organizations (CSOs) and Self Help Groups (SHGs) in mobilization and identification of Out-of-School children.

5.

Access to Educational Facilities under the Act.

(1)

The areas or limits of neighborhood within which a school has to be established by the State Government shall be as under:-

(a)

[In respect of children in classes I-V, a school shall be established within a walking distance of one kilometer of the neighbourhood taking into consideration the population of at least 20 school-going children in the locality, to make the school viable and ensure quality.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(b)

[In respect of children in classes VI-VIII, a school shall be established within a walking distance of three kilometer of the neighbourhood taking into consideration the population of the school-going children in the locality, to make the school viable and ensure quality.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(2)

Wherever required, the State Government shall upgrade existing primary schools with classes I - V by adding classes VI-VIII and incase of existing Upper Primary schools having classes I -VII by adding class VIII.

(3)

In areas with difficult terrain, risk of landslides, floods, lack of roads and in general, danger for young children in the approach from their homes to the school, the Government/Local Authority shall locate the school in such a manner as to avoid such dangers, by reducing the limits specified under sub-rule (1).

(4)

For children from small hamlets or any other place as identified by the State Government/Local Authority, where no school exists within the area or limits of neighborhood specified under sub-rule (1) above, the Government/Local Authority shall make adequate arrangements, such as free transportation, residential facilities and other facilities, for providing elementary education in a school, in relaxation of the limits specified under sub-rule (1).

(5)

In areas with high population density, the Government/Local Authority may consider opening of more sections in the neighborhood school or to establish more than one neighborhood school, having regard to the number of children in the age group of 6-14 years in such areas.

(6)

The Local Authority shall identify the neighborhood school (s) where children can be admitted and make such information public for each habitation within its jurisdiction.

(7)

In respect of children with disabilities which prevent them from accessing the school, the Government/Local Authority shall endeavor to make appropriate and safe transportation arrangements for them to attend school and complete elementary education. In case of severe disability the Government shall make arrangements for Home Based Education of such children who cannot be safely transported to neighborhood schools.

(8)

The Government/Local Authority shall ensure that access of children to the school is not hindered on account of social and cultural factors and the state shall endeavor to discourage setting up of schools exclusively for socially disadvantaged groups in their respective habitations in future so that mainstreaming of all children in the neighborhood school is achieved.

(9)

In areas affected by civil unrest and in respect of children in difficult circumstances, the Government shall notify schools as safe zones for children to enable them to continue their education uninterrupted. In case of disruption of schooling, all the children shall be accommodated in residential schools where their education can resume safely.

6.

Duties of State Government and Local Authority.

(1)

The Government /Local Authority shall ensure that a child attending a school of the State Government or Local authority referred to in sub-clause (i) of clause (n) of section 2 of the Act, a child attending a school referred to in sub-clause (ii) of clause (n) of section 2 of the Act in pursuance of clause (b) of sub section (1) of section 12 of the Act, and a child attending a school referred to in sub-clause (iii) (to the extent of the residential schools run by Andhra Pradesh Residential Educational Institutions Society, Andhra Pradesh Social Welfare Residential Educational Institutions Society, Gurukulam and other schools run by Government Educational Societies) and run by other Government Departments and the children admitted in the schools as defined in by Sub-clause (iv) of clause (n) of section 2 of the Act in pursuance of clause (c) of sub section (1) of section 12 of the Act shall be entitled to free text books, uniforms, writing materials and other facilities as prescribed by the Government of India /Government of Andhra Pradesh.

Provided that a child with disabilities shall also be entitled to free education with barrier free environment and special material, uniforms and books supplied by the State.

Provided further that all the teachers in regular schools shall be trained in appropriate teaching methods for Child With Special Need for the purpose of inclusive education.

Explanation. - In respect of the child admitted in pursuance of clause (b) of subsection (1) of section 12 of the Act and a child admitted in pursuance of clause (c) of sub-section (1) of section 12, of the Act the responsibility of providing the free entitlements shall be of the school referred to in sub-clause (ii) of clause (n) of section 2 of the Act and of sub-clauses (iii) and (iv) of clause (n) of section 2, of the Act respectively.

(2)

For the purpose of determining and for establishing neighborhood schools, the Government/Local authority shall undertake school mapping, and identify all children, including children in remote areas, children with disabilities, children belonging to disadvantaged groups, children belonging to weaker sections and children referred to in section 4 of the Act within a period of one year from the appointed date, and every year thereafter updated as on 30th September of each year.

(3)

The Government/Local Authority shall ensure that no child is subjected to caste, class, religious or gender abuse in the school and that no child is denied admission into any school public or private on the basis of caste / class / religion and gender.

(4)

For the purposes of clause (c) of section 8 and clause (c) of section 9 of the Act the Government and the Local Authority shall ensure that a child belonging to a weaker section and a child belonging to disadvantaged group is not segregated or discriminated against in the classroom, during mid day meals, in the play ground, in the use of common drinking water and toilet facilities, and in the cleaning of toilets or classrooms.

7.

Maintenance of records of children by Local Authority.

(1)

The Local Authority shall maintain a record of all children, in its jurisdiction, through a household survey, from their birth till they attain the age of 14 years.

A unique number may be given to every child to monitor his/her enrolment attendance learning achievement and transition to next higher classes. The household survey should also be conducted to identify the children in migrant locations, work places, unregistered habitations etc.

(2)

The record, referred to in sub-rule (1) above, shall be updated each year.

(3)

The record, referred to in sub-rule (1) above shall be maintained transparently, in the public domain, and used for the purposes of clause (e) of section 9 (4) The record, referred to in sub-rule (1) shall, in respect of every child, include:-

(a)

Name, sex, date of birth, (Birth Certificate Number), place of birth;

(b)

Parents' / guardians' names, address, occupation;

(c)

Pre-primary School/Anganwadi centre that the child has attended (upto age six) or attending.

(d)

School where the child is admitted;

(e)

Present address of the child;

(f)

Class in which the child is studying (for children between age 6-14), and if education is discontinued in the territorial jurisdiction of the Local Authority, the cause of such discontinuance;

(g)

Whether the child belongs to the weaker sections;

(h)

Whether the child belongs to a disadvantaged group;

(i)

Details of children requiring special facilities / residential facilities on account of migration and sparse population; age appropriate admission; disability.

(5)

The Local Authority shall ensure that the names of all children enrolled in the schools under its jurisdiction are publicly displayed in each school.

(6)

The Government may in consultation with the Commissioner and Director of School Education and State Project Director, Rajiv Vidya Mission (Sarva Shiksha Abhiyan) evolve a child tracking system so as to monitor not only the academic progress of children in the schools, but also their retention, transition and migration.

(7)

The Government shall make appropriate arrangements for tracking the children migrating from one district to another within the state or children of the families migrating from Andhra Pradesh to other states or children of the families migrating from other states into Andhra Pradesh along with their parents, so as to ensure continuity of elementary education.

(8)

The Government shall provide seasonal hostels in the villages known for migration of labour, either on a seasonal basis or for a longer time cycle so that the children will stay back when their parents migrate to other places and so that these children are provided education and suitable residential facility in spite of their parents migration.

(9)

The Government shall make arrangements for the education of the migrant children coming from other states, by setting up on-site schools at the work places where the migrant labour from other states are engaged in any economic activity in groups, in consultation with the state concerned where from the labour have migrated with families and children and as far as may be practicable, the teaching material and the textbooks shall be in their respective mother tongue.

8.

Admission of children belonging to weaker sections and disadvantaged groups.

(1)

The school referred to in sub-clauses (iii) and (iv) of clause (n) of section 2 of the Act shall ensure that children admitted in pursuance of clause (c) of subsection (1) of section 12 of the Act shall not be segregated from the other children in the classrooms nor shall their classes be held at places and timings different from the classes held for the other children.

(2)

The school referred to in sub-clauses (iii) and (iv) of clause (n) of section 2 of the Act shall ensure that children admitted in pursuance of clause (c) of section 12 (1) of the Act shall not be discriminated from the rest of the children in any manner pertaining to entitlements and facilities such as text books, uniforms, library and Information and Communication Technology (ICT) facilities, extracurricular activity and sports.

9.

Proof of Residence.

(1)

Any of the following documents may be taken for proof of Residence to decide whether the child belongs to the neighborhood or not:

(a)

Ration Card,

(b)

Pattadar Pass Book,

(c)

Electricity Bill,

(d)

House-Tax Receipt or extract of the House-Tax register maintained by the Gram Panchayat / Municipality / Corporation.

(e)

Telephone Bill if any or any other document as specified by the Government from time to time

(2)

The areas or limits of neighborhood specified in sub-rule (1) of rule 5 shall apply to admissions made in pursuance of clause (c) of sub-section (1) of section 12 of the Act;

Provided that if the requisite percentage of seats for children referred to in clause (c) of sub-section (1) of section 12 of the Act is not filled up, the area or limits shall extend to 3 kms for the purpose; Provided further that the school may, for the purposes of filling up the requisite percentage of seats for children referred to in clause (c) of sub-section (1) of section 12, extend the limit with prior permission of the District Educational Officer. Provided further that before extending the limits of the local area, the Mandal Educational Officer shall ensure that all the seats in the Government School have been filled up.

(3)

The Chairperson of the School Management Committee shall maintain a list of the children belonging to disadvantaged groups and weaker sections in the neighborhood area of every private school and specified category schools within his/her jurisdiction.

(4)

The following order of preference shall be followed by the schools covered by sub. Clauses II, III, IV of Clause (n) of Section 2 of the Act in admitting the children referred to in clauses (b) and (c) of sub section (1) of section 12 of the said Act.

(a)

Disadvantaged groups:

Orphans, HIV affected

and disabled

= 5%

SC

= 10%

ST

= 4%

(b)

Weaker sections which includes others viz., BC,

Minorities, OCs (whose annual income does not exceed Rs. 60,000/-
per annum)

= 6%

Total

= 25%

Note. - (1) The above arrangement of reservation in sequential order is applicable to private schools in plain areas. Where orphans, HIV affected and disabled are not available or available only to a certain extent such vacancies will be filled by STs and SCs. After exhausting all applications for admission of Orphans, HIV affected and disabled, SC and ST if any seats remain unfilled such seats will be added to the percentage of weaker sections.

(2)

In Tribal areas, all ST children should be admitted first. After exhausting applications of ST children, SC children may be admitted. After exhausting the SC, the remaining seats will be filled by others.

(3)

In Minority institutions, all candidates belonging to minority concerned should be considered for filling first. After exhausting applications of Minorities the left over seats may be filled in the order of ST, SC and BC.

10.

Reimbursement of per-child expenditure by the State Government.

(1)

The total annual recurring expenditure incurred by the State Government, whether from its own funds, or funds provided by the Central Government, on elementary education in respect of all schools established, owned or controlled by it or by the local authority, divided by the total number of children enrolled in all such schools, shall be the per-child expenditure incurred by the State Government.

Explanation. - For the purpose of determining the per-child expenditure, the expenditure incurred by the State Government or local authority on schools referred to in sub-clause (ii) of clause (n) of section 2 of the Act and the children enrolled in such schools shall not be included.

(2)

Every school referred to in sub clause(iv) of clause (n) of section 2 shall maintain a separate bank account in respect of the amount received by it as reimbursement under sub-section (2) of section 12.

(3)

There shall be a committee at the state level comprising Secretary Finance, Principal Secretary Primary Education, Principal Secretary/Secretary School Education, Commissioner and Director of School Education, State Project Director Rajiv Vidya Mission (Sarva Shiksha Abhiyan) and a representative of private school managements as nominated by their association, and representatives of two prominent NGOs, nominated by the Government for the purpose of assessing per child expenditure incurred by the state and the local authority for reimbursement of expenditure to the schools under sub-section (2) of section 12 of the Act.

(4)

The committee shall meet within three months from its constitution and thereafter every year in December to assess per child expenditure for the next academic session.

(5)

The State Project Director Rajiv Vidya Mission (Sarva Shiksha Abhiyan), on the basis of the decision of the committee, shall communicate to the District Educational Officer the per child expenditure for the reimbursement of the fee against the reservation of children in the schools under section 12 of the Act, read with section 8 and 9 of the Act; Provided that where such school is already under obligation to provide free education to a specified number of children on account of it having received any land, building, equipment or other facilities, either free of cost or at a concessional rate, such school shall not be entitled for reimbursement to the extent of such obligation.

(6)

The reimbursement will be made directly, by way of Real time Gross Settlement (RTGS) / National Electronic Fund Transfer (NEFT) in the separate bank account maintained by the school in two installments during the academic year.

First installment of 50% will be reimbursed in the month of September and the balance will be reimbursed in the month of January.

(7)

The school, shall in the month of July, submit the list of the students admitted in the school under section 12 of the Act, to the District Educational Officer for reimbursement. The District Educational Officer shall verify or cause to be verified the enrolment of the children before making the reimbursement of the first installment. He/she shall reimburse the final installment in the coming January again after verification of the enrolment of children, attendance of every child subject to a minimum of 80% attendance every month and student learning outcomes.

(8)

The school wise names of the students admitted in the private schools and the specified schools under section 12 of the Act shall also be maintained in the electronic form and will be displayed in a manner as determined by the Committee constituted under sub-rule (3) of rule 9 above.

11.

Birth Certificate for Admission.

- Wherever a birth certificate under the Registration of Births and Deaths Act 1969 is not available, anyone of the following documents shall be deemed to be proof of age of the child for the purposes of admission in schools:-

(a)

Hospital/ Auxiliary Nurse and Midwife (ANM) register record

(b)

Anganwadi record

(c)

Self declaration by the parent or guardian

12.

Normal period of Admission.

- The normal period of admission into any school, for the purposes of this Act, shall be from 12th June to 31st August of the academic year, it includes any admissions made prior to this period for the academic year commencing from the 12th of June or any other date notified by the Government for that year.

13.

Extended Period of Admission.

(1)

Extended period of admission shall be three months from the date of closure of the normal period of admission.

(2)

Where a child is admitted in a school after the extended period, he or she shall be eligible to complete studies with the help of special training, as determined by the head of the school.

14.

School Recognition.

(1)

Every school, other than a school established, owned or controlled by the Central Government, the State Government or the local authority, established before or after the commencement of the Act for imparting elementary education shall make an application cum self-declaration in Form-I as shown in the appendix, within a period of three months from the commencement of the Act, to the District Educational Officer, who shall be the designated authority to issue certificate of recognition to the school under section 18 of the Act. The application shall also mention the neighborhood area of the school that shall be covered under the provisions of clause (c) of sub-section-2 of Section 12 of the Act. The application addressed to the District Educational Officer shall be submitted to him/her through the Mandal Educational Officer. The school, at first, shall furnish information in the electronic form on the website maintained for the purpose so that the school information is immediately put on the public domain. The school shall get a receipt and registration number after filing the data in the website. Thereafter, the school shall submit the application form along with the copy of the receipt to the Mandal Education Officer who shall acknowledge receipt of the application.

(2)

The District Educational Officer may inspect or may cause to be inspected the school to verify if the school seeking recognition fulfills the norms and standards prescribed under section 19 of the Act. The District Educational Officer and

the inspecting authority, if it is other than the District Educational Officer, shall have power to seek information relevant for the grant of the recognition and to make inspection of the records to verify the information submitted in the application form seeking recognition.

(3)

The Mandal Educational Officer or a team of such officers as may be prescribed by the District Educational Officer shall verify the information submitted by the school in the application form and send the application form in original along with his / their report to the District Educational Officer for consideration within a week of receipt of the application.

(4)

The District Educational Officer, on being satisfied that the school fulfills the norms and standards prescribed under section 19 and section 25 of the Act, shall issue the recognition certificate in Form-2 as shown in the appendix. The certificate shall be for a period of three years and shall be issued within 30 days from the date of making application for recognition. The certificate of recognition shall be issued subject to following conditions:

(a)

The school is run by a society registered under the Societies Registration Act, 1860 (21 of 1860), or a public trust constituted under any law for the time being in force;

(b)

The school is not run for profit to any individual, group or association of individuals or any other persons;

(c)

The school conforms to the values enshrined in the Constitution;

(d)

The school is open to inspection by any officer authorized by the State Government/ Local Authority;

(e)

The school buildings or other structures or the grounds are used only for the purposes of education and skill development;

(f)

the school shall furnish such reports and information as may be required by the State Government, Commissioner and Director School Education and District Educational Officer from time to time and comply with such instructions of the State Government/Local Authority as may be issued to secure the continued fulfillment of the conditions of recognition or the removal of deficiencies in working of the school;

(g)

The school shall maintain norms and standards specified under section 19 of the Act

(h)

The school shall give reservation of minimum of 25% in class I for the children of disadvantaged groups and children of weaker sections from the neighbourhood area .In case the private school is an aided school it shall provide free and compulsory elementary education to such proportion of children admitted therein as its annual recurring aid or grants so received bears to its annual recurring expenses, subject to a minimum of 25%.;

(i)

The school having pre-school education shall also give reservation of at least 25 % of its enrolment at the initial stage of admission to the children of disadvantaged groups and the children of weaker sections of the neighbourhood area under section 12 of the Act;

(j)

The school shall submit, every year, before commencement of the academic session, fee to be charged from the children to the District Educational Officer

(k)

The school shall comply with the provisions of the Act;

(l)

The recognition shall be withdrawn in case of violation of the conditions of recognition.

15.

Provisional Certification.

- Should a school fail to fulfill the following norms:

(1)

Pupil - teacher ratio as specified in section 25 of the Act, the District Educational Officer shall issue a provisional certificate granting permission to run the school for a period up to six months from the date of commencement of the Act. The provisional certificate - shall be issued in the Form-3 as shown in the appendix. On expiry of the period of six months the school shall maintain the Pupil- Teacher Ratio as specified by the Act.

(2)

if a school fulfills norms mentioned in section 25 of the Act, but does not fulfill other norms and standards specified in the schedule of the Act the District Educational Officer shall issue a provisional certificate granting permission to run the school for a period up to three years from the date of commencement of the Act .The provisional certificate shall be issued in the Form-4 as shown in the appendix.

Provided that if the school fulfills the required norms and standards within the time frame specified in the provisional certificate, the certificate issuing authority, on receipt of application for recognition, satisfy himself/ herself and shall issue the certificate of recognition as laid down under sub -rule 4.

Provided further that if the school does not claim recognition within the period specified in the provisional certificate it shall be deemed to be an unrecognised school and running of such a school shall be punishable under section 19 of the Act.

(3)

No new school shall be opened after the commencement of the Act without obtaining recognition certificate issued under section 18 of the Act.

(4)

The recognition certificate issuing authority shall inspect or cause the school to be inspected every year to verify fulfillment of conditions of recognition.

16.

Withdrawal of Recognition.

- Where a school contravenes the conditions of recognition or any provisions of the Act the authority issuing the certificate of recognition shall issue show cause notice of withdrawal of recognition. The school shall be given at least one month time to file the reply. If the authority is not satisfied with the reply, the school shall be given opportunity of hearing before taking a decision on withdrawal of recognition. The order of withdrawal shall be in writing. The order of de-recognition shall be operative from the immediately succeeding academic year. The order will be a speaking order and it shall contain the name/names of the neighbourhood school /schools where the children of the de-rcognised school will be admitted.

17.

Appeal.

- Appeal against the order issued under sub rule (5) or sub rule (8) may be filed before the Collector of the district within 15 days from the date of receipt of the order. The Collector shall, at first, decide admissibility of the appeal and once the appeal has been admitted for hearing, the order under appeal shall remain suspended till the final decision of the appeal. The Collector, after giving opportunity of hearing to both the parties, will pass the order within two months from the date of filing of appeal. The order of the Collector shall be final.

18.

Revision.

(a)

A revision shall lie to the Commissioner and Director of School Education, against the orders passed by the Collector withdrawing recognition of any school.

(b)

It shall be filed within (30) days of the date of receipt of the orders passed by the appellate authority.

(c)

Information of recognition of any school will be sent to the local authority i.e. to the urban local body in case the school is situated in the urban area and to the Gram Panchayat in case the school is situated in the rural area, so that local public representatives have knowledge of establishment of recognised private school.

19.

School Management Committee.

- [(1) (a) The School Management Committee (SMC) shall be constituted in every school, other than an unaided school,

within its jurisdiction, within six months of the commencement of the Act;

(b)

The school having both primary and upper primary classes shall have one SMC for the entire school;

(c)

In case of schools having classes for both elementary and secondary education, separate School Management Committee shall be constituted for the elementary section, which may be styled as 'upper primary School Management Committee' of the corresponding school;

(d)

The School Management Committee once constituted shall exist perpetually until its abolition or merger, to be authorized by the Mandal Education Officer in case of Primary Schools and the DEO in case of other schools. However members will retire as per their terms. The resultant cyclical and casual vacancies shall be filled within reasonable time as prescribed by the Implementation Authority.]

(2)

The composition of the committee will be as follows -

(a)

[The composition of the Committee will be as follows:

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

Elected members:

(1)

Three parents/guardians elected by parents/guardians of children in each class, of whom at least one person is parent/guardian of a child from the disadvantaged group and another person is a parent/guardian of a child belonging to weaker sections, and two are women.

Provided that, in case, the number of children in a class is less than 6, the same shall be combined with the next lower or higher class, such that the number of electors in the combined class is 6 or more.

(2)

The term of an elected member will be for two years, or the date of leaving-from-the-school of the member's child/ward, which ever is earlier.

(3)

New parent/guardian members from entry class will be inducted into the SMC to replace those parent members who will move out of the SMC when their children leave school.]

(b)

[Ex-officio members:

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(1)

The Head Teacher or the in charge Head Teacher of the school shall be the Member Convenor;

(2)

Additional Teacher Member nominated by the MEO preferably from the gender opposite to that of the Head Teacher;

(3)

The concerned Corporator / Councillor / Ward Member, as the case may be;

(4)

The Anganwadi Worker(s) serving the neighbourhood area of the school;

(5)

The Multipurpose Health Worker - Female (ANM) serving the neighbourhood area of the school;

(6)

The President of Mahila Samakhya of the concerned village/ward.]

(c)

[Coopted members:

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(1)

Two school supporters from among persons who is an eminent educationist, a philanthropist, office bearer of a voluntary

rganization, an alumni or such other supporter of the school; coopted by the elected members of the SMC.

(2)

The term of coopted members shall be two years from the date of first meeting following the date of cooption.]

[(d) Local-Authority-Chairperson. - The concerned Sarpanch / Municipal Chairperson / Mayor may attend any meeting of SMC in their respective areas, at his/ her discretion.]

[Added by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(3)

[The School Management Committee shall elect the Chairperson and the Vice Chairperson from among its elected members. Provided that at least one of them should be a parent/guardian of a child from the disadvantaged group or the weaker sections. Provided further that at least one of them should be a woman.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(4)

[(a) The Head Master of the school shall organize an annual general body meeting of parents/guardians within one month after the normal period of admission.

(b)

All teachers working in the school and members of the SMC should be present at the annual general body meeting of parents/guardians.

(c)

The Head Teacher shall present a report on the learning activities of the school in the previous academic year and the plan for the current academic year.

(d)

The Chairman SMC shall summarize school development activities and management issues.

(e)

Electors of respective classes shall elect new parent/guardian members of SMC from entry class and also to fill in any casual vacancy.

(f)

Both parents of a child may participate in the deliberations of the annual general body. However, only one of the parents shall be eligible to vote for election of parent/guardian representative to the SMC.

(g)

Parents/guardians having children in different classes shall be eligible to participate in the election process of each class.

(h)

The Head Teacher shall conduct the election.

(i)

At least 50% of the parents/guardians should be present for conducting the elections.

(j)

Elections shall ordinarily be by show of hands or voice vote. In extraordinary situations of unresolved contention, secret ballot procedure may be adopted.]

(5)

[(a) The School Management Committee shall meet at least once in two months during the academic year. The first meeting will be around the beginning of the academic year. The last meeting, towards end of the academic year, shall review the academic progress and activities of the year.

(b)

As and when any elected member of the SMC requests to convene a meeting with a specific agenda, the Head Teacher shall, with the approval of the Chairperson, either convene a special meeting or schedule the agenda for discussion in the next scheduled meeting.

(c)

School Management Committee may constitute sub committees, like MDM, academic review, grants and expenditure and conduct social audit for effective monitoring and implementation of RTE.

(d)

Minutes and decisions of the SMC and its Subcommittee meetings shall be recorded and made available or read over to

all members.]

(6)

[The School Management Committee shall, in addition to the functions specified in section 21(2) of the Act, perform the following functions:

(a)

Periodically review the outcomes of curriculum delivery in the school and arrange to demonstrate learning outcomes of the children in the areas of reading, writing, simple arithmetic and comprehension, by picking the children at random from each class and shall also pay attention to student absenteeism and teacher absenteeism and take steps to remedy;

(b)

Ensure the enrolment and continued attendance of all the children from the neighborhood in the school;

(c)

Arrange to maintain a detailed list of all children including disabled, children of migrant families living in the neighborhood who are in the age group of 6-14 years and shall take effective steps to enroll the out of school children and recommend for the implementation of age appropriate class enrolment;

(d)

Review monitor attendance availability of teaching other staff of the school.

(e)

Monitor the implementation of the Mid-Day Meal (MDM) in the school;

(f)

Prepare an annual account of receipts and expenditure of the school.]

(7)

[Any money received shall be credited to the bank account of the School Management committee. The account shall be the joint account of the chairperson and the convener of the committee. The account will be made available for audit whenever required. At the end of each year, utilization certificate shall be submitted to the authority releasing the grants.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

(8)

[The Accounts of the School Management Committee shall be audited by the agency or team appointed for the purpose by the Implementation Authority or its delegatee for purposes of accounts and audit.]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

20.

Preparation of School Development Plan.

(1)

The School Management Committee shall prepare a school development plan in the month of November each year by calling a Gram Sabha involving all the parents of the children enrolled in the school, the local peoples' representative of the Panchyat Raj institutions, the Mahila Samakhya and also inviting a representative of a prominent NGO working in the field of education in the neighborhood area of the school, if any.

(2)

The school development plan, shall contain the following components:

(a)

Estimates of class-wise enrolment for each year;

(b)

Requirement of the number of additional teachers, including head teachers, subject teachers and part time teachers, separately for Classes I to V and classes VI to VIII, calculated with reference to the norms specified in the Schedule;

(c)

Physical requirement of additional infrastructure and equipments calculated with reference to the norms and standards specified in the Schedule;

(d)

Special focus on school sanitation, School safety, Health Hygiene, Early detection of disability and intervention plan;

(e)

Additional financial requirement, year-wise, in respect of (b) and (c) above, including additional requirement for providing special training facility specified in section 4, entitlements of children such as free text books and uniforms, and any other additional financial requirement for fulfilling the responsibilities of the school under the Act.

(3)

The school development plan should be signed by the Chairperson/Vice - Chairperson and Convener of the School Management Committee and submitted to the State Government or the Local Authority, as the case may be, before the end of the financial year in which it is to be prepared.

21.

Salary and allowances and terms and conditions of service of teachers of private unaided schools.

- In case of teachers of private schools salary and allowances and their terms and conditions of service shall be decided by the school management subject to legislations and regulations, if any, in force.

22.

Duties of Teachers.

(1)

In pursuance of the functions specified in sub-section (1) of section 24 of the Act and in order to fulfill the requirements of clause (h) of sub-section (2) of section 29.

(2)

The teacher shall maintain a file containing the pupil cumulative record for every child including the record maintained while implementing the Learning Enhancement Programme or any other programmes that may be in force, which will be the basis for awarding the completion certificate specified in sub-section (2) of section 30 of the Act.

(3)

In addition to the functions specified in clauses (a) to (e) of sub-section (1) of section 24, a teacher shall perform the following duties assigned to him or her, without interfering with regular teaching:

(a)

Participation in training programmes;

(b)

Participation in curriculum formulation, and development of syllabi, training modules and text book development;

23.

Grievance redressal of teachers.

(1)

The School Management Committee constituted under section 21 shall be the first level of grievance redressal of teachers of schools specified therein. If the School Management Committee fails to redress the grievance of the teacher/s a committee constituted at Mandal Parishad level with Mandal Parishad Development Officer (MPDO) as the chairman and the Mandal Executive Officer as convener shall sit in appeal to redress the grievance of the teacher/s as the case may be.

(2)

There shall be a District Level Grievance Redressal Committee to redress the grievances of the teachers.

(3)

The committee shall consist of the District Collector as Chairman, Superintendent of Police, Chief Executive Officer, Zilla Parishad, District Medical and Health Officer, Commissioner or Chief Municipal Officers of local urban body at the district headquarters Assistant Commissioner Tribal Welfare and District Educational Officer. The District Educational Officer shall be the convener of the committee.

(4)

The committee shall meet once in three months.

(5)

Any teacher of the school established, owned or controlled by the State Government or the local authority may submit his grievance in writing to the convener of the committee. The grievance may also be submitted through education portal as maintained by the Rajiv Vidya mission. The committee may after such enquiry, as it deems fit, will redress the grievance. The convener of the committee will communicate its decision to the teacher.

(6)

The committee, besides attending to the grievances received from the teachers, may, on its own, review the status of

the various claims and service related matters of the teachers.

(7)
Every private school shall develop its own mechanism for redressal of grievances of its Teachers.

24.
Maintaining Pupil-Teacher Ratio in each school.

(1)
Sanctioned strength of teachers in every school established, owned or controlled by the State Government or the local authority shall be specified by order in writing by the Commissioner Director of School Education in consultation with the Rajiv Vidya Mission, within a period of three months from the date of commencement of the Act
Provided that the Rajiv Vidya Mission and the Commissioner Director of School Education, shall, within six months of such order redeploy teachers of schools having a strength in excess of the sanctioned strength prior to the order referred to in sub-rule (1).

(2)
The Rajiv Vidya Mission and the Commissioner Director of School Education shall review the teacher positioning every year before commencement of the academic session.

(3)
The State Government shall take effective steps to fill up vacancies of teachers on a regular basis. If there is a delay in the recruitment, the School Management Committee concerned shall be permitted to engage qualified and trained personnel, temporarily, on consolidated remuneration as decided by the School Management Committee to fill the time gap between arising of vacancy and actual placement of the teachers.

(4)
The State Government shall cancel all such deputations of teachers where salaries are paid by the schools but services are taken by some other offices or institutions.

(5)
If any person of the State Government or the local authority violates the provisions of sub-section (2) of section 25, he or she shall be personally liable for disciplinary action.

25.
Academic Authority laying down the Curriculum and Evaluation Procedure.

(1)
The State Council of Educational Research and Training (SCERT) shall be the Academic Authority for the purposes of Section 29 of the Act.

(2)
The Academic Authority notified under sub-rule (1) shall hold consultations with the Rajiv Vidya Mission, in designing the State curriculum framework, the school evaluation mechanism and the Continuous Comprehensive Evaluation for all children in the schools and it shall -

(a)
Formulate the relevant and age appropriate syllabus and text books and other learning material

(b)
Develop in-service teacher training design, and

(c)
Prepare guidelines for putting into practice Continuous and Comprehensive Evaluation

(d)
Develop performance indicators for the individuals and institutions along with accountability criteria towards children's learning levels.

(e)
Undertake periodic performance appraisal of individuals and institutions.

(f)
Commission and undertake researches / studies on policies, programmes, curriculum, Learning outcomes of children etc.

(3)
The Academic Authority referred to in sub-rule (1) shall design and implement a process of holistic quality assessment

of all schools including the schools referred to in clause (iv) of Sub-section (n) of section-2 of the Act, on a regular basis 26.

Award of Certificate on completion of Elementary Education.

(1)

The head teacher or the in charge head teacher of the school shall issue the certificate of completion of elementary education within one month of the completion of elementary education in the Form-5 as shown in the appendix.

Provided that the private school shall stamp prominently on the certificate the number of recognition certificate issued by the competent authority.

(2)

The document referred to in sub-rule (1) shall -

(a)

Certify that the child has completed all courses of study prescribed under section 29 of the Act.

(b)

Contain the Pupil Cumulative Record of the child and also specify achievements of the child in areas of activities beyond the prescribed course of study and may include music, dance, literature, sports, etc.

27.

Constitution and Functions of Right to Education Protection Authority.

(1)

The State Government shall constitute an Authority viz., the Right to Education Protection Authority (REPA) within 6 months of the commencement of the Act.

(2)

The Right to Education Protection Authority shall consist of -

(i)

A chairperson who is -

(a)

A person of high academic repute or

(b)

Has been a judge of the High court or

(c)

Has done outstanding work for promotion of rights of the children and

(ii)

Four members of whom two shall be women from the following areas.

(a)

Education

(b)

Child healthcare and Child development

(c)

Juvenile justice or care of neglected or marginalized children or children with disabilities

(d)

Elimination of child labour or working with children in distress.

(e)

Child psychology or sociology

(f)

Legal profession

(iii)

The National Commission for Protection of Child Rights (NCPCR) Rules, 2006 shall, in so far as it pertains to the terms and conditions of office of the Chairman and the members of National Commission for Protection of Child Rights, mutatis mutandis, apply to Chairperson and other members of the Right to Education Protection Authority

(iv)

All records and assets of the Right to Education Protection Authority shall be transferred to the State Commission for Protection of Child Rights immediately after its constitution.

(v)

In performance of its functions, the State Commission for Protection of Child Rights or the Right to Education Protection Authority, as the case may be, may also act upon matters referred to it by the State Advisory Council.

(vi)

The State Government shall enable constituting a Cell in the State Commission for Protection of Child Rights or the Right to Education Protection Authority, as the case may be, which may assist the Commission or the Right to Education Protection Authority in performance of its functions under the Act.

28.

Constitution and Functions of the State Advisory Council.

- (I) The State Advisory Council shall consist of Chairperson and Co- Chair person and thirteen members.

(2)

The Minister in-charge of the Department of Primary Education shall be the ex-officio Chairperson of the Council. The Minister in-charge of the Department of School Education in the State Government shall be the ex-officio Co-chairperson

(3)

Members of the Council, shall be appointed by the State Government from amongst the persons having knowledge and practical experience in the field of elementary education and child development, as under:

(a)

At least four members shall be from amongst persons belonging to SCs, STs , OBCs and minorities taking one from each of these categories;

(b)

At least one member shall be from amongst persons having specialized knowledge and practical experience of education of children with special needs;

(c)

At least one member should be from amongst persons having specialized knowledge in the field of pre-primary education

(d)

At least one member shall be from amongst persons having specialized knowledge and practical experience in the field of teacher education

(4)

Fifty percent of the members i.e. six members shall be women.

(5)

Principal Secretary to Government Primary Education and SSA shall be the convener of the council. The Secretary, School Education shall be the coconvener and the Secretary, Tribal Welfare, the Secretary, Social Welfare, the Secretary, BC Welfare, the Secretary, Minority Welfare, the Secretary, Women Child Welfare, the Secretary, HMFWS, the Secretary, Panchayat Raj shall be special invitees to the meetings of the Council. One member each of the recognized teachers unions who are members of Joint Staff Council shall be the special invitees

(6)

The procedure for transaction of Business of the Council shall be as under:

(i)

The Council shall meet once in three months

(ii)

Quorum of the meeting of the Council shall be considered complete if at least 50% of its members are present.

(7)

The terms and conditions for appointment of members of the Council shall be as under:

(a)

Every member shall hold office as such for a term of two years from the date on which he/she assumes office.

Provided that no member shall hold office for more than two terms

(b)

The member may be removed from his office by an order of the State Government on the ground of proved misbehavior or incapacity, or on the happening of anyone or more of the following events: if the member:-

- (i)
Is adjudged insolvent; or
- (ii)
Refuses to act or becomes incapable of acting; or
- (iii)
Is of unsound mind and stands so declared by a competent Court; or
- (iv)
Has so abused his office as to render his continuance in office detrimental to the public interest or
- (v)
Is convicted for an offence by a competent Court; or
- (vi)
Is without obtaining leave of absence from the Council, absent in two consecutive meetings of the Council
- (c)
If a vacancy occurs in the office of Members, whether by reason of his death, resignation or otherwise, such vacancy shall be filled within a period of (120) days by making a fresh appointment in accordance with the provisions of sub-rule (3).
- 29.

Repeal and Savings.

(1)
The existing Acts, Rules, Regulations, Executive instructions etc., issued by the Government of Andhra Pradesh, the Commissioner and Director of School Education, inconsistent with these Rules shall be deemed to be void to the extent of the inconsistency.

(2)
Any act of any authority, Officer or body under any Act, Rule, Executive instruction after promulgation of the Act but before notification of these Rules shall be saved and he/she shall be deemed to have acted under these Rules.

Appendix

Form 1

Self Declaration Cum Application For Grant Of Recognition Of School

See sub-rule (1) of rule 14 of Andhra Pradesh Right of Children to Free and Compulsory Education Rules 2010.

To

The District Educational Officer (through Mandal Educational Officer concerned)

District-----

Andhra Pradesh

Sir,

I forward herewith a self declaration regarding compliance with the norms and standards prescribed in the Schedule of the Right of Children to Free and Compulsory Education Act, 2009 and an application in the prescribed proforma for the grant of recognition to _____ (Name of the school) with effect from the commencement of the academic year_____.

Yours faithfully,

Enclosure:

Chairman of Managing Committee/Correspondent

Place:Date:

A School Details

1. Name of the School
2. Academic Session
3. District
4. Postal Address
5. Village/City
6. Mandal
7. Pin Code:
8. Phone No. with STD Code

9. Fax No.

10. E-mail address if any

11. Nearest Police Station

B. General Information

1. Year of Foundation

2. Date of First Opening of School

3. Name of Trust / Society

4. Registration number of Trust / Society (enclose copy of document of registration)

5. Whether there is a proof of non - proprietary character of the Trust / Society supported by the list of Members with their address on an affidavit in copy

6. Name official address of the Manager / President /Correspondent

Name :Designation :AddressPhone (O):(R) :Email Address

7. Total Income Expenditure during last 3 years surplus / deficit

Year

Income

Expenditure

Surplus / deficit

C Nature and area of school

1. Medium of Instruction

2. Type of School (Specify entry exit classes)

3. If aided, the name of agency and percentage of aid

4. Teaching posts created

Name of the Post

Number of posts created by the Management

Of the posts in the previous column no. of posts

admitted to Grant-in-Aid

(i)

Headmaster

(ii)

School Assistant

(iii)

Secondary Grade Teachers iv) PET

(v)

Language Pandits

(vi)

Art / Music / Computer Teachers

5. If school recognized

6. If so, by which authority

? Recognition number

7. Does the school has its own building or is it running in a rented building.

8. Type of building (Pucca, Partially Pucca, Kucha, Tent)

9. Whether the school buildings or other structures or the grounds are used only for the purpose of education and skill development?

10. Total area of the school

11. Built up area of the school

12. Play area in the premises of the Schools (in Sq.Mts.)

13. Boundary wall/Fencing

14. Whether school is under obligation to provide free education to specified number of children on account of having received any land, building, equipment or other facilities, either free of cost or at a concessional rate from the State Government, Central Government and local authority

15. If Yes, enclose copy of the document

D. Enrollment Status

Sl. No.

Class

No. of Section

No. of Students

Disadvantaged Group

Boys

Girls

Total

Orphans

HIV Affected /Infected

CWSN

SC

ST

BC

Minorities

1

2

3

4

5

6

7

8

9

10

11

Pre- Primary

I

II

III

IV

V

VI

VII

VIII

IX

X

E. Infrastructure Details Sanitary Conditions

Sl. No.

Rooms

Numbers

Average Size

1. Classroom

2. Office room - cum store room - cum -Headmaster room

3. Kitchen - cum - store

4. Science lab

5. Library room

6. Sports Games room

7. Computer lab

F. Other Facilities

1. Whether all facilities have barrier free access
2. Teaching Learning Equipment (attach list)
3. Sports Play equipments (attach list)
4. Facility books in Library
Books (No. of books)
Periodical/News Papers
5. Type and number of drinking water facility
6. Sanitary Conditions
 - (i)
Type of W.C. Urinals
 - (ii)
Number of Urinals/Lavatories Separately for Boys
 - (iii)
Number of Urinals/Lavatories Separately for Girls
7. Electricity
- G. Particulars of Teaching Staff (Details of each teacher separately)
 1. Teachers in Primary School
Teacher's Name
Father's Name
Post working in (Designation)
Whether the teacher is working in Grant-in-Aid
post
 - (1)
 - (2)
 - (3)
 - (4)
Date of Birth
Date of Appointment
Academic Qualification
Professional Qualification
 - (5)
 - (6)
 - (7)
 - (8)
Subjects Studied
 - a. Degree level
 - b. P.G. Level
 - c. B.Ed Methodologies
Teaching Experience
Classes Subjects handled by the Teacher
Trained or Untrained
 - (9)
 - (10)
 - (11)
 - (12)
Scale of Pay
Gross Salary per month
Whether salary is paid through Nationalized bank
to the account of the teacher
 - (13)
 - (14)

(15)

2. Teachers in Upper Primary School

Teacher's Name

Father's Name

Post working in (Designation)

Whether the teacher is working in Grant-in-Aid

post

(1)

(2)

(3)

(4)

Date of Birth

Date of Appointment

Academic Qualification

Professional Qualification

(5)

(6)

(7)

(8)

Subjects Studied

a. Degree level

b. P.G. Level

c. B.Ed Methodologies

Teaching Experience

Classes Subjects handled by the Teacher

Trained or Untrained

(9)

(10)

(11)

(12)

Scale of Pay

Gross Salary per month

Whether salary is paid through Nationalized bank

to the account of the teacher

(13)

(14)

(15)

3. Teachers in High School

Teacher's Name

Father's Name

Post working in (Designation)

Whether the teacher is working in Grant-in-Aid

post

(1)

(2)

(3)

(4)

Date of Birth

Date of Appointment

Academic Qualification

Professional Qualification

(5)

(6)

(7)

(8)

Subjects Studied

a. Degree level

b. P.G. Level

c. B.Ed Methodologies

Teaching Experience

Classes Subjects handled by the Teacher

Trained or Untrained

(9)

(10)

(11)

(12)

Scale of Pay

Gross Salary per month

Whether salary is paid through Nationalized bank
to the account of the teacher

(13)

(14)

(15)

4. Head Master/ Principal

Teacher's Name

Father's Name

Post working in (Designation)

Whether the teacher is working in Grant-in-Aid
post

(1)

(2)

(3)

(4)

Date of Birth

Date of Appointment

Academic Qualification

Professional Qualification

(5)

(6)

(7)

(8)

Subjects Studied

a. Degree level

b. P.G. Level

c. B.Ed Methodologies

Teaching Experience

Classes Subjects handled by the Teacher

Trained or Untrained

(9)

(10)

(11)

(12)

Scale of Pay

Gross Salary per month

Whether salary is paid through Nationalized bank
to the account of the teacher

(13)

(14)

(15)

H. Curriculum and Syllabus

1. Details of curriculum syllabus followed in each class (upto VIII)

2. System of pupil

3. Whether pupils of the school are required to take any Board exam upto class 8 ?

I. School fee (per Annum)

Sl. No.

Class

Tuition Fee

Special Fee

Other fee if any

1

2

3

4

5

6

7

8

9

10

11

Pre- Primary

I

II

III

IV

V

VI

VII

VIII

IX

X

J- Neighbourhood area for purpose of section 12 (c) of the Act.

Within 1 km

Within 3 kms

Name of the Habitation / Locality General

Population

Name of the Habitation / Locality General

Population

K. Certified that the School complies with the Fire Safety Rules, Municipal by-laws and Traffic Regulations.

L. Whether school has constituted Parent Teacher Association (PTA) as per G.O.Ms. No. 246 ? If so, attach the details along with minutes of the last two meetings.

M. Certified that the school has also submitted information in the Data Capture Format of District Information System of Education (DISE) with this application.

N. Certified that the school is open to inspection by any officer authorized by the appropriate authority;

O. Certified that the school undertakes to furnish such reports and information as may be required by the District Educational Officer from time to time and to comply with such instructions of the appropriate authority or the District Educational officer as may be issued to secure the continued fulfillment of the condition of recognition or the removal of deficiencies in working of the school;

P. Certified that records of the School pertinent to the implementation of this Act shall be open to inspection, by any officer authorized by the District Educational Officer or appropriate authority at any time, and the school shall furnish all such information as may be necessary to enable the Central and / or State Government / Local Body or the Administration to discharge its or his obligations to Parliament / Legislative Assembly of the State / Panchayat/ Municipal Corporation as the case may be.

Place:Date:

(Signature)Secretary cum Correspondent.....School

Form 2

Certificate of Recognition

See sub-rule (4) of rule 14 of Andhra Pradesh Right of Children to Free and Compulsory Education Rules 2010.

E-Mail:

.....Phone:

Fax:

Office Of District Educational Officer

_____ District

Andhra Pradesh

No.

Dated:

The Manager,

Name of the school

Sub: Recognition Certificate for the School under sub -rule (4) of Rule 14 of Right of Children to Free and Compulsory Education Rules, 2010 for the purpose of Section 18 of Right of Children to Free and Compulsory Education Act, 2009.

Ref: 1. Your application Lr.No. _____ Dated: _____

2. Onsite Inspection Report Lr. No. _____ Dated: _____

Dear Sir/Madam,

With reference to your application cited 1st above and onsite inspection 2nd above, I convey the grant of recognition to the ____ (name of the school with address) for Class __ to Class __ for a period of three years w.e.f. __ to __ .

The above sanction is subject to fulfillment of following conditions:-

(1)

The grant of recognition is not extendable and does not in any way imply any obligation to recognize/affiliate beyond Class VIII.

(2)

The School shall abide by the provisions of Right of Children to Free and Compulsory Education Act, 2009 and the rules thereof.

(3)

The School shall admit in class I, to the extent of 25% of the strength of that class, children belonging to weaker sections and disadvantaged groups in the neighbourhood and provide free and compulsory elementary education till its completion. Provided, further that in case of pre primary classes also, this norm shall be followed.

(4)

For the children referred to in paragraph 3, the School shall be reimbursed as per Section 12(2) of the Act. To receive such reimbursements the school shall provide a separate bank account.

(5)

The Society/School shall not collect any capitation fee and subject the child or his or her parents or guardians to any screening procedure.

(6)

The School shall not deny admission to any child

- (a)
for lack of age proof if such admission is sought subsequent to the extended period prescribed for admission.
- (b)
on the ground of religion, caste or race, place of birth or any of them.
- (7)
The School shall ensure:
- (i)
No child admitted shall be held back in any class or expelled from school till the completion of elementary education in a school;
- (ii)
No child shall be subjected to physical punishment or mental harassment;
- (iii)
No child is required to pass any board examination till the completion of elementary education;
- (iv)
Every child completing elementary education shall be awarded a certificate as laid down under Rule 23
- (v)
Inclusion of students with disabilities/special needs as per provisions of the Act
- (vi)
The teachers are recruited with minimum qualifications as laid under section 23(1) of the Act.
Provided further that the current teachers who, at the commencement of this Act do not possess minimum qualifications shall acquire such minimum qualifications within a period of 5 years;
- (vii)
The teacher performs his / her duties specified under section 24(1) of the Act and
- (viii)
The teachers shall not engage himself or herself in private teaching activities.
- (8)
The School shall follow the syllabus on the basis of the curriculum laid down by the appropriate authority.
- (9)
The School shall enroll students proportionate to the facilities available in the school as prescribed in section 19 of the Act.
- (10)
The School shall maintain the standards and norms of the school as specified in section 19 of the Act. The facilities reported at the time of last inspection are as given under:-
- (a)
Area of school campus
- (b)
Total built up area
- (c)
Area of play ground
- (d)
No. of class rooms
- (e)
Room for Headmaster-cum-Office-cum-Store room Separate toilet for boys and girls
- (f)
Drinking Water Facility
- (g)
Kitchen for cooking Mid Day Meal
- (h)
Barrier free Access
- (i)
Availability of Teaching Learning Equipment/Play Sports Equipments / Library

(11)

Enrolment and Staff particulars:

(a)

Total Enrolment for Classes _____ to _____ as per on site inspection is _____

(b)

Total teaching staff in the School as per on site inspection is _____

(c)

Total non-teaching staff in the School as per on site inspection is _____

(12)

No unrecognized classes shall run within the premises of the school or outside in the same name of school.

(13)

The school buildings or other structures or the grounds are not used during the day or night for commercial or residential purposes (except for the purpose of residence of any employee of the school) or for political or non-educational activity of any kind whatsoever;

(14)

The School is run by a society registered under the Societies Registration Act, 1860 (21 of 1860), or a public trust constituted under any law for the time being in force;

(15)

The School is not run for profit to any individual, group or association of individuals or any other persons;

(16)

The accounts should be audited and certified by a Chartered Accountant and proper accounts statements should be prepared as per rules. A copy each of the Statements of Accounts should be sent to the District Educational Officer every year.

(17)

The recognition Code Number allotted to your school is _____. This may please be quoted for any correspondence with this office in future.

(18)

The school furnishes such reports and information as may be required by the Rajiv Vidya Mission / District Educational Officer from time to time and complies with such instructions of the State Government/Local Authority as may be issued to secure the continued fulfillment of the condition of recognition or the removal of deficiencies in working of the school;

(19)

Renewal of Registration of Society if any, be ensured.

(20)

The recognition shall be withdrawn if the contravention of the provisions of the Act, The Rules and conditions of recognition is found and proved.

Yours faithfully, District Educational Officer

Form - 3

Provisional Certificate Of Recognition

See sub-rule (1) of rule 15 of Andhra Pradesh Right of Children to Free and Compulsory Education Rules 2010.

E-Mail:

_____ Phone:

Fax:

Office Of District Educational Officer

_____ District

Andhra Pradesh

No.

Dated:

The Manager,

Name of the school

Sub: Recognition Certificate for the School under sub-rule (1) of Rule 15 of Right of Children to Free and Compulsory Education Rules, 2010 for the purpose of Section 18 of Right of Children to Free and Compulsory Education Act, 2009.

Dear Sir/Madam,

With reference to your application dated and subsequent correspondence with the school/inspection in this regard, I convey the grant for provisional recognition to the (name of the school with address) for Class __ to Class __ for a period of ----- months w.e.f. ---- to 30th September 2010.

The above sanction is subject to fulfillment of following conditions:-

(1)

The grant of recognition is not extendable and does not in any way imply any obligation to recognize/affiliate beyond Class VIII.

(2)

The School shall abide by the provisions of Right of Children to Free and Compulsory Education Act, 2009 and the rules thereof.

(3)

The School shall admit in class I, to the extent of 25% of the strength of that class, children belonging to weaker section and disadvantaged group in the neighbourhood and provide free and compulsory elementary education till its completion. Provided, further that in case of pre primary classes also, this norm shall be followed.

(4)

For the children referred to in paragraph 3, the School shall be reimbursed as per Section 12(2) of the Act. To receive such reimbursements school shall provide a separate bank account.

(5)

The Society/School shall not collect any capitation fee and subject the child or his or her parents or guardians to any screening procedure.

(6)

The School shall not deny admission to any child

(a)

for lack of age proof if such admission is sought subsequent to the extended provided prescribed for admission.

(b)

on the ground of religion, caste or race, place of birth or any of them.

7. The School shall ensure:

(i)

No child admitted shall be held back in any class or expelled from school till the completion of elementary education in a school;

(ii)

No child shall be subjected to physical punishment or mental harassment;

(iii)

No child is required to pass any board examination till the completion of elementary education;

(iv)

Every child completing elementary education shall be awarded a certificate as laid down under Rule 23

(v)

Inclusion of students with disabilities/special needs as per provision of the Act

(vi)

The teachers are recruited with minimum qualifications as laid under section 23(1) of the Act. Provided further that the current teachers who, at the commencement of this Act do not possess minimum qualifications shall acquire such minimum qualifications within a period of 5 years;

(vii)

The teacher performs his/her duties specified under section 24(1) of the Act and

(viii)

The teachers shall not engage himself or herself for private teaching activities.

(8)

The School shall follow the syllabus on the basis of curriculum laid down by the appropriate authority.

(9)

The School shall enroll students proportionate to the facilities available in the school as prescribed in the section 19 of

the Act.

(10)

The School shall maintain the standards and norms of the school as specified in section 19 of the Act. The facilities reported at the time of last inspection are as given under:-

(a)

Area of school campus Total built up area

(b)

Area of play ground

(c)

No. of class rooms

(d)

Room for Headmaster-cum-Office-cum-Storeroom

(e)

Separate toilet for boys and girls

(f)

Drinking Water Facility

(g)

Kitchen for cooking Mid Day Meal

(h)

Barrier free Access

(i)

Availability of Teaching Learning Material/Play Sports Equipments/Library

(11)

No unrecognized classes shall run within the premises of the school or outside in the same name of school.

(12)

The school buildings or other structures or the grounds are not used during the day or night for commercial or residential purposes (except for the purpose of residence of any employee of the school) or for political or non-educational activity of any kind whatsoever;

(13)

The School is run by a society registered under the Societies Registration Act, 1860 (21 of 1860), or a public trust constituted under any law for the time being in force;

(14)

The School is not run for profit to any individual, group or association of individuals or any other persons;

(15)

The accounts should be audited and certified by a Chartered Accountant and proper accounts statements should be prepared as per rules. A copy each of the Statements of Accounts should be sent to the District Elementary Education Officer every year.

(16)

The recognition Code Number allotted to your school is This may please be noted and quoted for any correspondence with this office.

(17)

The school furnishes such reports and information as may be required by the Rajiv Vidya Mission/ District Education Officer from time to time and complies with such instructions of the State Government! Local Authority as may be issued to secure the continued fulfillment of the condition of recognition or the removal of deficiencies in working of the school;

(18)

Renewal of Registration of Society if any, be ensured.

(19)

Other conditions as per Annexure 'III' enclosed.

(20)

The recognition shall be subject to renewal under section 19 of the Act if the school fulfills the norms specified under section 25 of the Act .

Yours faithfully, District Educational Officer

Form 4

Provisional Certificate Of Recognition

See sub-rule (2) of rule 15 of Andhra Pradesh Right of Children to Free and Compulsory Education Rules 2010.

E-Mail:

Phone:

Fax:

Office Of District Education Officer

District

Andhra Pradesh

No.

Dated:

The Manager,

Name of the school

Sub: Recognition Certificate for the School under sub -rule (6) of Rule 12 of Right of Children to Free and Compulsory Education Rules, 2009 for the purpose of Section 18 of Right of Children to Free and Compulsory Education Act, 2009.

Dear Sir/Madam,

With reference to your application dated and subsequent correspondence with the school/inspection in this regard, I convey the grant for provisional recognition to the _____ (name of the school with address) for Class __ to Class __ for a period of three years w.e.f.----- to 31st March .2013.

The above sanction is subject to fulfillment of following conditions:-

(1)

The grant for recognition is not extendable and does not in any way imply any obligation to recognize/affiliate beyond Class VIII.

(2)

The School shall abide by the provisions of Right of Children to Free and Compulsory Education Act, 2009 (Annexure I) and the Right of Children to Free and Compulsory Education Rules, 2009 (Annexure II).

(3)

The School shall admit in class I, to the extent of -----% of the strength of that class, children belonging to weaker section and disadvantaged group in the neighbourhood and provide free and compulsory elementary education till its completion. Provided, further that in case of pre primary classes also, this norm shall be followed.

(4)

For the children referred to in paragraph 3, the School shall be reimbursed as per Section 12(2) of the Act. To receive such reimbursements school shall provide a separate bank account.

(5)

The Society/School shall not collect any capitation fee and subject the child or his or her parents or guardians to any screening procedure.

(6)

The School shall not deny admission to any child

(a)

for lack of age proof if such admission is sought subsequent to the extended provided prescribed for admission.

(b)

on the ground of religion, caste or race, place of birth or any of them.

(7)

The School shall ensure:

(i)

No child admitted shall be held back in any class or expelled from school till the completion of elementary education in a school;

(ii)

No child shall be subjected to physical punishment or mental harassment;

(iii)

No child is required to pass any board examination till the completion of elementary education;

(iv)

Every child completing elementary education shall be awarded a certificate as laid down under Rule 23

(v)

Inclusion of students with disabilities/special needs as per provision of the Act

(vi)

The teachers are recruited with minimum qualifications as laid under section 23(I) of the Act. Provided further that the current teachers who, at the commencement of this Act do not possess minimum qualifications shall acquire such minimum qualifications within a period of 5 years;

(vii)

The teacher performs its duties specified under section 24(1) of the Act and

(viii)

The teachers shall not engage himself or herself for private teaching activities.

(8)

The School shall follow the syllabus on the basis of curriculum laid down by the appropriate authority.

(9)

The School shall enroll students proportionate to the facilities available in the school as prescribed in the section 19 of the Act.

(10)

The School shall maintain the standards and norms of the school as specified in section 19 of the Act. The facilities reported at the time of last inspection are as given under:-

(a)

Area of school campus Total built up area Area of play ground No. of class rooms

(b)

Room for Headmaster-cum-Office-cum-Storeroom Separate toilet for boys and girls

(c)

Drinking Water Facility

(d)

Kitchen for cooking Mid Day Meal Barrier free Access

(e)

Availability of Teaching Learning Material/Play Sports Equipments Library

(11)

No unrecognized classes shall run within the premises of the school or outside in the same name of school.

(12)

The school buildings or other structures or the grounds are not used during the day or night for commercial or residential purposes (except for the purpose of residence of any employee of the school) or for political or non-educational activity of any kind whatsoever;

(13)

The School is run by a society registered under the Societies Registration Act, 1860 (21 of 1860), or a public trust constituted under any law for the time being in force;

(14)

The School is not run for profit to any individual, group or association of individuals or any other persons;

(15)

The accounts should be audited and certified by a Chartered Accountant and proper accounts statements should be prepared as per rules. A copy each of the Statements of Accounts should be sent to the District Elementary Education Officer every year.

(16)

The recognition Code Number allotted to your school is . This may please be noted and quoted for any correspondence with this office.

(17)

The school furnishes such reports and information as may be required by the Rajiv Vidya Mission / District Educational

Officer from time to time and complies with such instructions of the State Government! Local Authority as may be issued to secure the continued fulfillment of the condition of recognition or the removal of deficiencies in working of the school;

(18)

Renewal of Registration of Society if any, be ensured.

(19)

Other conditions as per Annexure 'III' enclosed.

(20)

The recognition shall be subject to renewal under section 18 and section 19 of the Act.

Yours faithfully, District Educational Officer

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

[Substituted by Notification No. G.O.Ms. 41, dated 19.6.2013 (w.e.f. 3.3.2011).]

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